

G.O.Ms.No.147, Genl.Admn. (Spl.B) Dept., dt.01.05.2000 regarding scheme of Vigilance Commission defining jurisdiction, powers etc - clarification issued.

Subject Heading : Vigilance Commission - jurisdiction, powers etc

Subject Heading : V&E Department - cases to be referred to Vigilance Commission for advice

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Read the following :

1. G.O.Ms.No.421 G.A.(SC.D) Dept., dt.03.08.93.
2. U.O.Note No.2116/SC.E/96-2 GAD dt.15.09.97.
3. From the VC., AP., Hyd., D.O.Lr.No.622/VC.F1/99-1, dt.31.03.99.
4. From the APVC, Lr.No.329/VC.A2/99-1 dt.30.11.99.

ORDER :

In the G.O. first read above, the jurisdiction, powers and the scheme of the A.P. Vigilance Commission were defined. As per para 5 of the Scheme appended to the G.O. first read above, the Vigilance Commissioner will be responsible for the proper performance of the duties and responsibilities assigned to the Commission from time to time and for generally coordinating the work and advising the Departments / Government Undertakings / Government Companies and such other Institutions as may be notified by the Government from time to time, in respect of all matters pertaining to the maintenance of integrity and impartiality in the administration. The relevant portions of the G.O. first read above, defining the jurisdiction and powers of the Vigilance Commission are extracted below :

2. The Commission will have the Jurisdiction and powers in respect of the matters to which the executive power of the State extends. The powers and functions of the Vigilance Commission will be as follows :

- (i) to cause an enquiry into any transaction in which a public servant including a member of an All-India Service is suspected or alleged to have acted for an improper purpose or in a corrupt manner.
- (ii) to cause an enquiry or an investigation to be made into :
 - (a) any complaint that a public servant had exercised or refrained from exercising his powers for improper or corrupt purposes ;
 - (b) any complaint of corruption, misconduct or lack of integrity or other kinds of malpractices or misdemeanour on the part of a Public Servant.

Explanation :

Corruption as used in the forgoing clauses shall have the same meaning of Criminal misconduct in the discharge of official duties under the provisions of the Prevention of Corruption Act, 1988 (Central)

- (iii) to call for records, reports, returns and statements from all Departments / Government Undertakings/Government Companies/and such other Institutions as may be notified by Government from time to time so as to enable the Commission to exercise a general check and supervision over the Vigilance and Anti-corruption work in the Departments / Government Undertakings/ Government Companies and such other Institutions as may be notified by the Government from time to time.
- (iv) to make over under his direct control such complaints, information or cases as he may consider necessary for further action which may be either:-
- a) to ask the Anti-Corruption Bureau to register a regular case and investigate it;
- or
- b) to entrust the complaint, information or case for enquiry:
- 1) to the Anti-Corruption Bureau
- or
- 2) to the Department / Government Undertakings / Government Company concerned and such other Institutions as may be notified by the Government from time to time.
- (v) In any case, where it appears that the discretionary powers had been exercised for improper or corrupt purposes, the Commission will advise the Department / Government Undertaking / Government Company and such of the Institution as may be notified by the Government from time to time that suitable action may be taken against the Public Servant concerned and if it appears that the procedure of practice is such as affords scope or facility for corruption or misconduct, the Commission may advise that such procedure or practice be appropriately changed or altered in a particular manner.
- (vi) The Commission may initiate at such intervals as it considers suitable review of the procedure and practice of Administration in so far as they relate to the maintenance of integrity in the Administration in all departments of administration.
- (vii) The Commission may collect such statistics and other information as may be necessary.
- (viii) The Commission may obtain information about action taken on its recommendations.

3. In the U.O.Note second read above, instructions were issued to the effect that there is no need to seek the advice of the Vigilance Commission before taking a final decision on the enquiry reports submitted by the agencies other than the Anti-Corruption Bureau, ie., Vigilance & Enforcement, CID etc.

4. In the letter third read above, the Vigilance Commissioner brought to the notice of Government that many Departments are of the view that cases which are referred by the Anti-Corruption Bureau only should be referred to the Vigilance Commission for advice and in respect of disciplinary cases initiated by Departments on their own, there is no need to refer them to the

Vigilance Commission for advice. He has therefore, suggested to issue suitable instructions to refer all disciplinary cases initiated by the Departments on their own to the Vigilance Commission invariably for advice.

5. Referring to the instructions issued in the U.O.Note second read above, the Vigilance Commission has stated that it would be anomalous not to refer cases of public servants, whose misconduct has been detected by the Director General, Vigilance & Enforcement in a Govt., Department while cases of other public servants in the same department involved in any case of misconduct referred to by the Director General, Anti-Corruption Bureau are referred to Vigilance Commission. He has, therefore, proposed that wherever there is a misconduct in respect of any public servant as brought out in an enquiry by the Director General, Vigilance & Enforcement, such cases of public servants should be referred to the Vigilance Commission, as required under the scheme of the Vigilance Commission, as this would also ensure uniformity in the treatment of disciplinary cases on different public servants of the same department, vide letter fourth read above.

6. In the letter fourth read above, the Vigilance Commissioner while referring to the scheme of the Vigilance Commission requested to issue general instructions to the effect that all cases of corruption and other irregularities which are covered under Para 6 of the Scheme of the Vigilance Commission issued in the G.O. first read above irrespective of the fact whether Anti-Corruption Bureau or other authorities including departmental authorities which enquired into the irregularities, should be referred to Vigilance Commission for advice.

7. After careful consideration of the suggestions made by the Vigilance Commission in the letters third to fourth read above, the Government have decided to accept the suggestion of the Vigilance Commissioner in para (6) above.

8. Accordingly, in supersession of the instructions issued in the U.O.Note second read above, it is hereby ordered that all cases of corruption and other irregularities which are covered under para 6 of the Scheme of Vigilance Commission issued in the G.O. first read above irrespective of the fact whether Anti-Corruption Bureau or other authorities including departmental authorities which enquired into the irregularities, should be referred to Vigilance Commission for advice.

9. All Departments of Secretariat are requested to communicate these orders to all the Government Undertakings, Companies and Institutions under their administrative control, for compliance.